

The original responses from Plaintiff were clearly insufficient; it appears that Plaintiff has now somewhat complied. The Court recognizes that Defendant made many efforts to moot the motion by attempting to meet and confer, and Plaintiff, while not being wholly unresponsive, failed to make sufficient efforts either to comply with discovery or to engage substantively in the meet and confer process. Defendant did not seek sanctions in their motion and Plaintiff did not “unsuccessfully . . . oppose[the] motion.” While the Court agrees that the discovery responses—failing to give addresses or identify documents—remain deficient, given the confusion regarding the proper Plaintiff, it is not clear without further discussion how to remedy the failure.

Parties to appear. Counsel for Plaintiff is ordered to be prepared to make representations regarding amendment of the Complaint if it is necessary and amendment of discovery, including verification.

8. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***HEARING ON MOTION IN RE: ON PLEADINGS**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves “for an order dismissing this action based solely on pleadings.” He purportedly bases this motion on “Federal Rule of Civil Procedure 12(c).” He then argues that judgment should be entered because the complaint was not timely served on all defendants, pursuant to California Rule of Court 3.110. The Court did not receive a timely opposition.

Defendant appears to properly identify the issue that Plaintiff has failed to comply with rules of service. Plaintiff additionally appears to have failed to make any efforts in this case, not filing a Case Management Conference statement prior to the October Case Management Conference, nor meeting and conferring in advance of that CMC. It would appear that Plaintiff has abandoned this case.

The problem, however, is that Defendant seeks the assistance of inapplicable standards—federal rules in a state court case—and the wrong remedy. While CCP 3.110 does identify the timing for service, the remedy is that the Court must issue an Order to Show Cause to Plaintiff as to why sanctions should not issue.

The Court will therefore issue the required OSC. Sanctions up to and including terminating sanctions may be appropriate, particularly if Plaintiff has abandoned this matter. Given, however, that a valid Motion to Compel Arbitration is being heard contemporaneously with this Motion, Defendant may elect alternate remedies. If Defendant wishes to proceed with arbitration forthwith, he may withdraw this motion and proceed accordingly. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

9. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING: